

Tentative Rulings for August 6, 2026
Department 502

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

25CECG00571 *Raman v. Kuldeep et al.* (Dept. 502)

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

24CECG02242 *Castellanos v. Rodrigues et al.* is continued to Tuesday, August 25, 2026, 3:30 p.m. in Department 502

25CECG01320 *Crume v. Forest River, Inc.* is continued to Thursday, September 10, 2026, at 3:30 p.m. in Department 502.

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Tentative Rulings for Department 502

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Tentative Ruling

Re: ***Aidwater, LLC v. Arroyo, Jr.***
Superior Court Case No. 25CECG01451

Hearing Date: August 6, 2026 (Dept. 502)

Motion: Default Prove-Up

Tentative Ruling:

To grant and sign the proposed judgment. No appearance is necessary.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img on 8-4-26.
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: **Mohammed v. Fresno 62 Investment, LLC et al.**
Superior Court Case No. 23CECG04542

Hearing Date: August 6, 2026 (Dept. 502)

Motion: By Defendant Fresno Property Management, Corp. to
Enforce Settlement

Tentative Ruling:

To deny as moot. (Code Civ. Proc., § 664.6.)

Explanation:

Defendant Fresno Property Management, Corp. ("Defendant") seeks to enforce a settlement entered with plaintiff Raj Mohammed ("Plaintiff"). However, the terms of the settlement provide that the matter stay active until the settlement is completed. (Hoppe Decl., ¶ 3, Ex. B, ¶ 10.) On June 15, 2026, and as noted on reply, the matter as to Defendant was dismissed. On reply, Defendant both concedes that the present motion is now moot, but also appears to seek enforcement of the settlement.

From the terms of the settlement, the entry of a dismissal of Defendant suggests that Plaintiff believes the matter is concluded. However, on July 29, 2026, Plaintiff filed an untimely opposition. The court exercises discretion and considers the untimely filing. (Cal. Rules of Ct., rule 3.1300(d).) Nothing in the opposition challenges the fact that on June 15, 2026, Plaintiff voluntarily dismissed Defendant from this action. Rather the opposition appears to state legal theories as to avoiding the settlement agreement, which do not affect the above singular fact. The motion is denied as moot. The request for attorney fees is denied as Plaintiff voluntarily dismissed the action as to Defendant.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: img on 8-4-26
(Judge's initials) (Date)

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Tentative Ruling

Re: **Harding v. Peters**
Superior Court Case No. 25CECG05824

Hearing Date: August 6, 2026 (Dept. 502)

Motion: By Defendant Lurline Peters on Demurrer to Complaint

Tentative Ruling:

To overrule as moot. (Code Civ. Proc., § 472, subd. (a).)

Explanation:

A party may amend its pleading any time after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition. (Code Civ. Proc., § 472, subd. (a).) Here, plaintiff Joseph Harding timely filed a first amended complaint on July 24, 2026 in lieu of an opposition to the demurrer filed by defendant Lurline Peters. The matter is now mooted by a superseding pleading, and the demurrer is overruled.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img on 8-4-26.
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: ***In re Jimenez Aguilar (Andrew Axel Lopez)***
Superior Court Case No. 26CU01999

Hearing Date: August 6, 2026 (Dept. 502)

Motion: Petition to Compromise Minor's Claim

Tentative Ruling:

To grant. Order signed. No appearances necessary.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: img on 8-4-26.
(Judge's initials) (Date)